

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 3981

By: Caldwell (Trey) and Bashore
of the House

and

Gollihare of the Senate

[District Attorneys Council - District Attorney
Locality Incentive Program - minimum requirements -
procedures - District Attorney Locality Incentive
Program Revolving Fund - codification - effective
date]

14 AUTHOR: Add the following House Coauthor: Moore

15 AMENDMENT NO. 1. Page 1, restore the title to read

"An Act relating to district attorneys; creating the
District Attorney Locality Incentive Program Act;
providing short title; defining terms; authorizing
the District Attorneys Council to make certain
incentive payments under certain circumstances;
providing minimum requirements to receive incentive
payments; requiring recipients to satisfy certain
conditions; providing for selection committee for
jurisdiction participation; providing factors for
program participation; construing provisions;
creating the District Attorney Locality Incentive
Program Revolving Fund; specifying source of fund;
providing for expenditures; providing purpose of
fund; providing for codification; and providing an
effective date."

1 Passed the Senate the 27th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
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7 [District Attorneys Council - District Attorney
8 Locality Incentive Program - minimum requirements -
9 procedures - District Attorney Locality Incentive
10 Program Revolving Fund - codification - effective
11 date]
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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 215.43a of Title 19, unless
17 there is created a duplication in numbering, reads as follows:

18 This act shall be known and may be cited as the "District
19 Attorney Locality Incentive Program Act".

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 215.43b of Title 19, unless
22 there is created a duplication in numbering, reads as follows:

23 As used in the District Attorney Locality Incentive Program:
24

1 1. "Eligible employee" means a full-time prosecutor of a
2 district attorney's office serving in a designed high-need locality.

3 2. "Service obligation" means the period of continuous service
4 required to earn an incentive payment under this act.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 215.43c of Title 19, unless
7 there is created a duplication in numbering, reads as follows:

8 A. The District Attorneys Council, subject to availability of
9 funding, may provide financial incentive payments to an eligible
10 employee serving in a designated high-need locality.

11 B. Incentive payments made pursuant to this section shall not
12 exceed a cumulative total of Fifty Thousand Dollars (\$50,000.00) per
13 eligible employee during the initial five-year incentive period.

14 C. Incentive payments may be structured and disbursed at
15 intervals determined by the administering committee, including, but
16 not limited to, payments made upon completion of specified years of
17 service.

18 D. Upon completion of the initial five-year incentive period,
19 an eligible employee may receive additional incentive payments not
20 to exceed Ten Thousand Dollars (\$10,000.00) for each additional two-
21 year period of continued service in a qualifying locality, subject
22 to availability of funds and continued eligibility.

23 E. Incentive payments authorized by this section may be made
24 only to the extent funds are available and shall be approved in the

1 manner prescribed by the administering committee. No employee shall
2 have vested right to receive an incentive payment or to receive the
3 maximum amount authorized by this act.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 215.43d of Title 19, unless
6 there is created a duplication in numbering, reads as follows:

7 A. An eligible employee who receives an incentive payment
8 pursuant to this act shall be required to complete the corresponding
9 service obligation associated with the payment.

10 B. If an eligible employee terminates service in a designated
11 high-need locality prior to satisfying the required service
12 obligation, the employee shall be required to reimburse the payor
13 entity for the incentive amount received.

14 C. If the employee completes less than the required service
15 period for the incentive payment received, reimbursement by the
16 employee shall be made on a pro rata basis, calculated according to
17 the portion of the service obligation completed.

18 SECTION 5. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 215.43e of Title 19, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Eligibility for participation in the District Attorney
22 Locality Incentive Program shall be determined by a committee
23 composed of representatives of the district attorneys, in
24 coordination with the District Attorneys Council.

1 B. The committee shall designate high-need localities and
2 determine incentive amounts based on factors including, but not
3 limited to:

- 4 1. Population size;
- 5 2. District hub status;
- 6 3. Remoteness or rural characteristics;
- 7 4. Length of vacancy or turnover rates;
- 8 5. Distance to an institution of higher learning; and
- 9 6. Other recruitment and retention considerations identified by
10 the committee.

11 C. The committee shall establish policies and procedures
12 governing:

- 13 1. Application and approval process;
- 14 2. Documentation requirements;
- 15 3. Incentive schedules and payment timing; and
- 16 4. Enforcement of service obligations and reimbursement
17 requirements.

18 SECTION 6. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 215.43f of Title 19, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Eligible employees serving in designated high-need
22 localities at the time the District Attorney Locality Incentive
23 Program becomes effective shall be eligible to participate in the
24 Program.

1 B. For purpose of incentive eligibility and administration, all
2 participating employees, regardless of prior length of service,
3 shall begin the initial five-year incentive period concurrently upon
4 designation of the Program.

5 SECTION 7. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 215.43g of Title 19, unless
7 there is created a duplication in numbering, reads as follows:

8 Nothing in this section shall be construed to create a vested
9 right to an incentive payment. Incentive payments are subject to
10 availability of funds and continued eligibility as determined by the
11 administering committee.

12 SECTION 8. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 215.43h of Title 19, unless
14 there is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund
16 for the District Attorneys Council to be designated the "District
17 Attorney Locality Incentive Program Revolving Fund". The fund shall
18 be a continuing fund, not subject to fiscal year limitations, and
19 shall consist of all monies directed for deposit to the fund by law.
20 All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended by the District
22 Attorneys Council for the purpose of funding the District Attorney
23 Locality Incentive Program. Expenditures from said fund shall be
24 made upon warrants issued by the State Treasurer against claims

1 filed as prescribed by law with the Director of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 9. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 25th day of February,
5 2026.

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7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the ____ day of _____, 2026.

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11 Presiding Officer of the Senate

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